

Harry --

Let me write-up some things on this and will send to you. Hope everyone is well.

Jim

-----Original Message-----

From: Kingerski, Harry

Sent: Tuesday, December 11, 2001 4:41 PM

To: Gahn, Scott; Steffes, James D.; Smith, Mike D.; Gilbert-smith, Doug; Nicolay, Christi L.; Frank, Robert

Subject: TX PUC reply

This letter was drafted to respond to questions from Staff concerning EPMI and EES intentions going forward in the TX market. Specifically, we need to confirm EPMI does not want to preserve REP certification (Doug), and that EES will be able to post collateral and maintain "technical and managerial resources" to comply with TX requirements for certification (Scott - anything substantive you can add?) .

Please review and provide comments. Call with questions. thanks.

Harry x35786.

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